

CNR No. HRGR01007022-2019

COMA 05/2019 SFIO Vs. Adarsh Builders

Present: Sh. L.S Raghav senior standing counsel along with
Sh. Hari Kishan senior Public Prosecutor for SFIO

Present complaint received by way of transfer. It be checked and registered. Today case was fixed for recording the statement of executing official regarding proclamation of accused No. 136 Akshat Singh. Executing constable EHC Gajraj has not appeared. Learned Public Prosecutor placed before the court his treatment record . In view of the facts and circumstances, now the matter is adjourned to 07.06.2022 for appearance of EHC Gajraj for making statement.

An application on behalf of accused Meenakshi Modi and Neha Ghemawat Modi has been moved with the prayer that non bailable warrants may not be issued against accused no. 132 and 123 respectively on the ground that operation of order of Hon'ble Rajasthan High Court has already been stayed by Hon'ble Supreme Court vide its order dated 20.05.2022 in SLP CrI. 4732-4733 of 2022. Sh. Phalit Sharma, Ld. Addl. Sessions Judge, Gurugram who was dealing with the matter earlier on 25.03.2022 passed the order for issuance of non bailable warrants against abovenamed accused on account of fact that Hon'ble High Court ordered for vacation of its

earlier order regarding appearance of accused namely Meenakshi Modi and Smt. Neha Ghemawat Modi.

In view of the matter, this court is of the view that at this stage, non bailable warrants may not be issued against accused Meenakshi Modi and Smt. Neha Ghemawat Modi and if issued same be recalled unexecuted.

(Dr. Virender Parshad)

Additional Sessions Judge,

Gurugram UID HR 0082

Date of Order:2.06.2022

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